

TENTATIVE RULING

Case: **Hanna v. General Motors LLC**
Case No. CV2023-0370

Hearing Date: **September 3, 2026** **Department Thirteen** **9:00 a.m.**

Plaintiffs James Komori Hanna and Rebecca L H Hanna's motion for attorney's fees and costs is **GRANTED IN PART**, in the amount of **\$64,580.24** (Civ. Code, § 1794, subd. (d).) The Court finds that:

- For purposes of Civil Code section 1794(d), plaintiffs are the prevailing party. (Sarbaz decl., ¶ 2, Exhibit 7.)
- The hourly rates for paralegals Carolyne Castillo and Maritza Castillo, and the hourly rates for attorneys, Mr. Sarbaz at \$525/hr. for 2023 and Ms. Shumake at \$425/hr. for 2024 are reasonable. (Sarbaz decl., ¶¶ 56-57, 59 Exhibit 11.) Although Ms. Shumake provided a 2025 rate, she did not bill during 2025. (*Id.*, ¶ 49, Exhibit 8.) However, the hourly rates of Mr. Sarbaz at \$575/hr. for 2024 and \$625/hr. for 2025, Mr. Whitman at \$550/hr. for 2024 and \$575/hr. for 2025, Ms. Scott at \$550/hr., Nicole Basilio at \$250/hr., Ben Wilson at \$250/hr., Alyssa Ontiveros at \$250/hr., Angelica Romero at \$200/hr., Alejandra Pastor at \$150/hr., and Franchesca Ann at \$125/hr., are unreasonable. (*Heritage Pacific Financial, LLC v. Monroy* (2013) 215 Cal.App.4th 972, 1009 [“The court may rely on its own knowledge and familiarity with the legal market in setting a reasonable hourly rate.”]; *Hadley v. Krepel* (1985) 167 Cal.App.3d 677, 682; Sarbaz decl., ¶¶ 52-68.) Therefore, the Court has reduced the hourly rates to \$540/hr. for 2024 and \$560/hr. for 2025 for Mr. Sarbaz, \$520/hr. for 2024 and \$535/hr. for 2025 for Mr. Whitman, \$530/hr. for Ms. Scott, \$200/hr. for Nicole Basilio, Ben Wilson, and Alyssa Ontiveros, \$0.00/hr. for Angelica Romero, \$125/hr. for Alejandra Pastor, and \$0.00/hr. for Franchesca Ann. (Sarbaz decl., ¶¶ 56-58, 60-62, 64-66 & 68, Exhibit 11.)
- Throughout 2024, Mr. Whitman billed a rate higher than the amount Mr. Sarbaz declared. (Sarbaz decl., ¶¶ 49 & 58, Exhibit 8.)
- Throughout 2025 and 2026, Carolyn Castillo billed at a rate higher than the amount Mr. Sarbaz declared. (Sarbaz decl., ¶¶ 49 & 63, Exhibit 8.)

Additionally, plaintiffs have established that most of the hours expended by American Lemon Law Group, LLP on this litigation were reasonable. (*Lunada Biomedical v. Nunez* (2014) 230 Cal.App.4th 459, 488 [“In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence”].) However, the Court declines to award attorney's fees for the time not yet incurred. (Sarbaz decl., ¶ 69.) Therefore, the Court reduces these hours by 3 hours. Finally, the Court declines to award attorney's fees for plaintiffs' first motion to compel as the Court awarded sanctions for Mr. Whitman's time spent drafting this motion. (Quezada decl., ¶ 9.) Therefore, the Court has reduced the requested hours by 12.9 hours.

Finally, plaintiffs have shown that the requested costs were “reasonably incurred . . . in connection with the commencement and prosecution of” this action. (Civ. Code, § 1794, subd. (d); Sarbaz decl., ¶ 50, Exhibit 9.)

Accordingly, the Court awards plaintiffs' attorney's fees in the amount of **\$60,792.00** and costs in the amount of **\$3,788.24** for a total of **\$64,580.24**.

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Morales et al. v. Nuseed Americas, Inc. et al.**
Case No. CV2025-1344

Hearing Date: September 3, 2026 Department Fourteen 9:00 a.m.

Motion to continue trial:

Plaintiffs Mercedes Morales and Ernestina Rodriguez’s (collectively, “plaintiffs”) unopposed motion to continue trial is **GRANTED**. (Cal. Rules of Court, rule 3.1332.) The current dates for the trial readiness conference and trial are **VACATED**. All discovery cut-off dates, and other dates, will be tied to the new trial date.

Parties are **DIRECTED TO APPEAR** to select a new trial date.

Motion for protective order:

Plaintiffs’ unopposed motion for a protective order is **DENIED WITHOUT PREJUDICE**. The Court finds that plaintiffs’ motion fails to provide legal authority to support the issuance of a protective order. (Cal. Rules of Court, rule 3.1113(b); see *Quantum Cooking Concepts, Inc. v. LV Associates, Inc.* (2011) 197 Cal.App.4th 927, 934, citing *Chavez v. Netflix, Inc.* (2008) 162 Cal.App.4th 43, 52 [where a motion is supported by a deficient memorandum, the trial court is justified in denying the motion on procedural grounds]; see also *Hood v. Gonzales* (2019) 43 Cal.App.5th 57, 73–74, citing *Sprague v. Equifax, Inc.* (1985) 166 Cal.App.3d 1012, 1050 [every brief should contain a legal argument with citation of authorities on the points made and if none is furnished on a particular point, the court may treat it as waived and pass it without consideration].)

The notice of motion does not provide notice of this Court’s tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.